IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No. 2

CP (CAA) No. 22/Chd/Hry/2024
(2nd Motion)

IN THE MATTER OF SCHEME OF AMALGAMATION OF:

Busy Infotech Pvt. Ltd.
CIN: U72200HR1997PTC120184
PAN: AAACB5022A
Having its registered office at Plot No.60,
Ground Floor, Sector-18, Opposite Police Station,
Gurugram-122016, Haryana
E-mail: compliance@busy.in

…Petitioner Company No. 1/Transferor Company 1

And

Hello Trade Online Private Limited
CIN: U51909HR2008PTC120183
PAN: AACCH1466J
Having its registered office at Plot No.60,
Ground Floor, Sector-18, Opposite Police Station,
Gurugram-122016, Haryana
E-mail: cs@indiamart.com

…Petitioner Company No.2/Transferor Company 2

And

Tolexo Online Pvt. Ltd.
CIN: U72200HR2014PTC120179
PAN: AAFCT0145B
Having its registered office at Plot No.60,
Ground Floor, Sector-18, Opposite Police Station,
Gurugram-122016, Haryana
E-mail: cs@tolexo.com

…Petitioner Company No.3/Transferee Company

Under Section: 230-232, CA 2013

Order delivered on 26.07.2024

CORAM:
SHRI. ASHISH VERMA,
HON'BLE MEMBER (T)

SHRI. HARNAM SINGH THAKUR,
HON'BLE MEMBER (J)

July 26, 2024
PRF/RHD

PRESENT:
For the Petitioner : Mr. Kartikeya Goyal, Advocate

ORDER

This is a joint second motion company petition filed by the Petitioner-Companies, namely; **Busy Infotech Pvt. Ltd.** (Petitioner Company No. 1/Transferor Company No. 1); **Hello Trade Online Private Limited** (Petitioner Company No.2/Transferor Company No.2) and **Tolexo Online Pvt. Ltd.** (Petitioner Company No.3/Transferee Company) under Sections 230-232 of Companies Act, 2013 (the Act) and other applicable provisions of the Act read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules").

2. In its petition, the petitioner companies have prayed for directions for issuance of notice to the regulators including the sectoral regulators and publication of notice inviting the objections of the general public regarding the proposed scheme of amalgamation.

3. The first motion application seeking directions for dispensing/ convening the meetings of the Equity Shareholders, Secured and Unsecured Creditors of the Petitioner Companies was filed before this Tribunal vide Company Application No.CA (CAA) No.18/Chd/Hry/2024 and based on such application necessary directions were issued on 03.07.2024. In the order dated 03.07.2024, the meetings of equity shareholders, secured creditors and unsecured creditors of the Petitioner Companies were dispensed with for the reasons mentioned in the aforesaid order.

4. The notice of hearing will be advertised in "Business Standard" (English, Delhi NCR Edition) and "Jansatta" (Hindi, Delhi NCR Edition) not less than 10 days before the next date fixed for hearing.

5. In addition to the above public notice, the applicant Companies shall serve the notice of the petition on the following Authorities namely, a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; New Delhi; (b) The Registrar of Companies, NCT of Delhi and Haryana (c) the Official Liquidator, Chandigarh; and (d) Income Tax Department through the Nodal Officer-Principal Commissioner of Income Tax, NWR, Aayakar Bhawan, Sector 17-E, Chandigarh, (e) Reserve Bank of India, Chandigarh by mentioning the PAN of the Company along with a copy of this petition by speed post immediately.

6. The petitioner companies shall at least 7 days before the date of hearing of the petition file an affidavit of service regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

7. The next date of hearing of the petition shall be on 13.09.2024 for the consideration of the approval of the scheme as contemplated between the petitioner companies.

8. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

Sd/- Sd/-

(ASHISH VERMA)
HON'BLE MEMBER (T)

(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

July 26, 2024
PRF/RHD